

Part 2

Control of Building

14. Approval and consent required for commencement of building works, etc.

- (1) Save as otherwise provided, no person shall commence or carry out any building works or street works without having first obtained from the Building Authority—
 - (a) his approval in writing of documents submitted to him in accordance with the regulations; and
 - (b) his consent in writing for the commencement of the building works or street works shown in the approved plan. (*Amended 68 of 1993 s. 6*)
- (2) Subject to section 28B(4), neither the approval of any plans nor the consent to the commencement of any building works or street works shall be deemed— (*Amended 41 of 1982 s. 3*)
 - (a) to confer any title to land;
 - (b) to act as a waiver of any term in any lease or licence; or
 - (c) to grant any exemption from or to permit any contravention of any of the provisions of this Ordinance or of any other enactment.

(Replaced 44 of 1959 s. 4)

14A. Building Authority not deemed to consent if supervision plan not lodged

- (1) The Building Authority is not deemed to have consented under section 15, if the authorized person has not lodged a supervision plan for the building works or street works.

- (2) Subsection (1) does not apply where the Building Authority does not require a supervision plan.
- (3) The person preparing a supervision plan must comply with the technical memorandum current at the time of lodging the supervision plan.
- (4) The person preparing a supervision plan is responsible for the content of the supervision plan.

(Added 54 of 1996 s. 15)

14AA. Approval and consent not required for minor works

Section 14(1) does not apply in respect of minor works commenced under the simplified requirements.

(Added 20 of 2008 s. 16)

15. Approval and consent deemed to be given unless refusal notified

- (1) Where an application is made in the specified form for the Building Authority to approve plans or to consent to the commencement of building works or street works, he shall be deemed to have given his approval or consent, as the case may be, unless within the period prescribed by the regulations he has notified his refusal to give his approval or consent, as the case may be, in writing setting out the grounds for such refusal, and where one of such grounds is that further particulars and plans are required, he shall specify such plans and particulars. *(Amended 68 of 1993 s. 7)*
- (2) The grounds set out for any refusal to approve plans shall not be treated as being exhaustive, and no such refusal shall be construed as implying any approval of any part of such plans.

(Added 44 of 1959 s. 4)

16. Grounds on which approval or consent may be refused

- (1) The Building Authority may refuse to give his approval of any plans of building works where—
- (a) the plans are not such as are prescribed by regulations or are not such as he may have required under this section;
 - (b) the plans are not endorsed with or accompanied by a certificate from the Director of Fire Services certifying either—
 - (i) that, having regard to the purpose to which the building is intended to be put (which purpose shall be stated in the certificate), no fire service installation or equipment is necessary in connexion with the building that will result from the carrying out of the building works shown on the plans; or
 - (ii) that the plans have been examined and are approved by him as showing all such fire service installations and equipment as in his opinion, having regard to the purpose to which the building is intended to be put (which purpose shall be stated in the certificate), comprise the minimum fire service installations and equipment necessary for such building in accordance with a Code of Practice published from time to time by the Director of Fire Services; (*Added 3 of 1964 s. 2*)
 - (c) he has not received application for their approval in the specified form or any such application does not contain the particulars required therein; (*Amended 68 of 1993 s. 8*)
 - (d) the carrying out of the building works shown thereon would contravene the provisions of this Ordinance or of any other enactment, or would contravene any approved plan or partly approved plan under the Town Planning

Ordinance (Cap. 131) or any draft plan prepared under that Ordinance; (*Amended 25 of 2023 s. 107*)

- (da) the building works—
 - (i) are within a comprehensive development area of an approved plan or partly approved plan under the Town Planning Ordinance (Cap. 131) or a draft plan prepared under that Ordinance; and
 - (ii) contravene a master lay-out plan approved by the Town Planning Board under section 4A(2) of that Ordinance; (*Replaced 25 of 2023 s. 107*)
- (e) he has not received such other documents as are prescribed by regulations;
- (f) such fees as are prescribed by regulations have not been paid;
- (g) the carrying out of the building works shown thereon would result in a building differing in height, design, type or intended use from buildings in the immediate neighbourhood or previously existing on the same site;
- (h) the building works consist of, or any part thereof involves, the construction, formation or laying out of any means of access or other opening, not being a street or access road, to or from any street, and the place at or manner in which such means of access or other opening opens on to the street is, in his opinion, such as to be dangerous or likely to be dangerous or prejudicial to the safety or convenience of traffic using the street, or which may be expected to use the same;
- (i) in his opinion, it is necessary for him to have further particulars of such plans or of the building works shown thereon or, where all the plans prescribed by regulations have not been submitted, to have one or more of the

other plans prescribed by regulations, to enable him fully to consider such plans;

- (j) any further particulars or other plans delivered to him, upon his refusal, under paragraph (i), to give his approval to any plans, are not to his satisfaction;
- (k) such plans differ materially from those approved upon the exemption from the provisions of Part I of the Landlord and Tenant (Consolidation) Ordinance (Cap. 7) of the premises to which they relate; (*Amended 73 of 1970 s. 2; 29 of 1983 s. 47*)
- (l) it appears to him that the demolition of a building that requires to be demolished before the building works shown on such plans can be carried out—
 - (i) will cause, or will be likely to cause, a total or partial collapse of any adjoining or other building, or
 - (ii) will render, or will be likely to render, any adjoining or other building so dangerous that it will collapse, or be likely to collapse, either totally or partially,

and he is not satisfied that the collapse or the likelihood of the collapse, or such danger or the likelihood of such danger to the building, can be avoided; (*Added 27 of 1964 s. 2*)

- (m) in the case of plans showing site formation works, piling works, excavation works or foundation works, it appears to him that the carrying out of such works—
 - (i) will cause, or will be likely to cause, a total or partial collapse of any adjoining or other building, street or natural, formed or man-made land, or

- (ii) will render, or will be likely to render, an adjoining or other building, street or natural, formed or man-made land so dangerous that it will collapse, or be likely to collapse, either totally or partially,
and he is not satisfied that the collapse or the likelihood of the collapse, or such danger or the likelihood of such danger to the building, street or land, can be avoided; *(Added 27 of 1964 s. 2. Amended 72 of 1980 s. 4)*
- (n) it appears to him that the proposed use of the building to which the plans relate would contravene the provisions of regulation 49 of the Building (Planning) Regulations (Cap. 123 sub. leg. F); *(Added 23 of 1969 s. 3. Amended 17 of 2018 s. 51)*
- (o) the plans relate to building works to be carried out upon land in respect of which a notice has been served under section 4 of the Lands Resumption Ordinance (Cap. 124) or under the proviso for resumption contained in the Government lease of the land; *(Added 73 of 1970 s. 2. Amended 29 of 1998 s. 25)*
- (p) in the case of building works to be carried out on a site which in his opinion ought to be provided with streets having adequate connexion to a public street, he is not satisfied that such streets are or will be provided; *(Added 59 of 1973 s. 2. Amended L.N. 159 of 1990)*
- (q) in the case of building works to be carried out in area number 1 of the scheduled areas the building is one which in his opinion must be capable of resisting landslip debris and he is not satisfied that the plans provide adequately for that capability. *(Added 41 of 1982 s. 4. Amended 52 of 1990 s. 3)*
- (1A) Without prejudice to any other power of the Building Authority under this section, the Building Authority shall

refuse to give his approval to any plans of building works where the building works proposed include the construction of a hand-dug caisson unless he is satisfied that any of the following circumstances exists—

- (a) the depth of the hand-dug caisson does not exceed 3 metres and the diameter of the inscribed circle of the hand-dug caisson is not less than 1.5 metres;
- (b) for the site concerned—
 - (i) the use of a hand-dug caisson is the only practical construction method; or
 - (ii) there is no other safe engineering alternative.
(Added 6 of 1995 s. 3)

(2) The Building Authority may refuse to give his approval of any plans of street works where—

- (a) the plans are not such as are prescribed by regulations;
- (b) he has not received application for their approval in the specified form or any such application does not contain the particulars required therein; *(Amended 68 of 1993 s. 8)*
- (c) the carrying out of the street works shown thereon would contravene the provisions of this Ordinance or of any other enactment;
- (d) in the case of an access road, the place at or manner in which the access road opens on to a street is, in his opinion, such as to be dangerous or likely to be dangerous or prejudicial to the safety or convenience of traffic using the street or access road, or which may be expected to use the same;
- (e) such fees as are prescribed by regulations have not been paid;

- (f) in the opinion of the Building Authority, it is necessary for him to have further particulars of such plans to enable him fully to consider such plans;
 - (g) any further particulars delivered to him, upon his refusal under paragraph (f) to give his approval to any plans, are not to his satisfaction.
- (3) The Building Authority may refuse to give his consent to the commencement of any building works or street works where—
 - (a) he has not received and given his approval to all the plans thereof prescribed by regulations;
 - (b) he has not received such other documents as may be prescribed by regulations;
 - (ba) any condition or requirement imposed by him under section 17(1) in respect of the building works or street works has not been complied with to his satisfaction; *(Added 52 of 1990 s. 3)*
 - (bb) he is not satisfied that the authorized person, registered structural engineer, registered geotechnical engineer, registered general building contractor or registered specialist contractor has adequately provided precautionary and other protective measures for demolition works; *(Added 54 of 1996 s. 16. Amended 15 of 2004 s. 18)*
 - (bc) the authorized person has not lodged a supervision plan for the works; *(Added 54 of 1996 s. 16)*
 - (c) such fees as are prescribed by regulations have not been paid; or
 - (d) a period exceeding 2 years has elapsed since the approval of any of the prescribed plans in respect of the

building works or street works. (*Amended 23 of 1969 s. 3*)

(3A) In subsection (3)(d), the reference to plans does not include such plans as are for the time being approved in connexion with an order under Part I of the Landlord and Tenant (Consolidation) Ordinance (Cap. 7) excluding the premises from the further application of that Part. (*Replaced 73 of 1970 s. 2. Amended 29 of 1983 s. 47*)

(4) The Building Authority may refuse to give his consent to the commencement of any building works where it appears to him that the carrying out of the building works—

- (a) will cause, or will be likely to cause, a total or partial collapse of any adjoining or other building, street or natural, formed or man-made land, or
- (b) will render, or will be likely to render, any adjoining or other building, street or natural, formed or man-made land so dangerous that it will collapse, or be likely to collapse, either totally or partially,

and he is not satisfied that the collapse or the likelihood of the collapse, or such danger or the likelihood of such danger to the building, street or land, can be avoided. (*Added 27 of 1964 s. 2. Amended 31 of 1964 s. 2; 72 of 1980 s. 4*)

(5) Without prejudice to subsection (4), the Building Authority may refuse to give his consent to the commencement of demolition works until he is satisfied that adequate precautions have been taken—

- (a) to prevent a collapse, whether total or partial, or the likelihood of such a collapse, of any adjoining or other building, street or natural, formed or man-made land; or
- (b) to prevent any adjoining or other building, street or natural, formed or man-made land becoming so dangerous, or the likelihood of any such building, street

or land becoming so dangerous, that it will collapse or be likely to collapse, either totally or partially. (*Added 27 of 1964 s. 2. Amended 72 of 1980 s. 4*)

(*Added 44 of 1959 s. 4*)

17. Conditions may be imposed in certain cases

- (1) Where an application is made to the Building Authority in respect of any of the building works or street works set out in Column A, he may take such action by way of imposing conditions and requirements by orders in writing, and refusing his approval of plans or his consent to commence the building works or street works as is set out in Column B opposite the particular item in Column A.

A	B
1. Approval of plans of building works in connexion with an existing building which would result in a new building.	1. For the purpose of making such new building comply with the standard of structural stability and public health established from time to time by regulations— (a) require plans to be submitted showing additional building works, and refuse approval of the plans already submitted pending his approval of such plans together with the plans required to be submitted under this section; and

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A	B
	(b) require to be carried out the building works shown on such approved additional plans or such other building works as he may consider necessary.
2. Approval of plans of building works for the erection of a new building to which access is to be obtained by means of an existing access road which does not comply with the regulations.	2. For the purpose of making such access road comply with the regulations— (a) require plans to be submitted showing the necessary street works; and (b) require street works to be carried out in accordance with an approved plan.

A	B
3. Approval of plans of street works where in the opinion of the Building Authority— (a) the bearing capacity of the ground forming the foundation of the carriage-way is such that the thicknesses of materials to be used in the surfacing thereof, as prescribed by regulations, are inadequate; or (b) that the volume of traffic which may be expected to use such street is such that a carriage-way constructed in accordance with the regulations will be inadequate.	3. Require such carriage-way to be constructed in such manner as he may prescribe.

A	B
4. Approval of plans of building works or street works involving the construction, formation, laying out or any alteration of any access to or opening to or from any street.	4. Require such access or opening to be constructed and sited in such manner as in his opinion will ensure the safety and convenience of traffic and pedestrians using or expected to use such street.
5. Consent to commence building works to be carried out on land— (a) abutting or fronting on a new private street; or (b) to which access is to be obtained by means of a new access road or an access road to which alterations are to be made.	5. For the purpose of making such private streets or access roads comply with the regulations— (a) require plans of street works to be submitted and may refuse his consent to the commencement of the building works until he has approved such plans; and (b) require street works to be carried out in accordance with an approved plan.

A	B
6. Approval of plans showing, or consent to commence, building works involving— (a) the structural use of materials; <i>(Replaced 57 of 1987 s. 4)</i> (b) site formation works, excavation works, piling works, foundation works or any other structural works; or <i>(Replaced 57 of 1987 s. 4. Amended 39 of 2000 s. 3)</i> (c) ground investigation in the scheduled areas. <i>(Replaced 41 of 1982 s. 5. Amended 52 of 1990 s. 4)</i>	6. Require and prescribe conditions for— (a) maximum loads and stresses; (b) tests of materials; (c) the use of materials; (ca) instrumentation for checking design assumptions and monitoring the effect of the works; (d) standards of workmanship; (e) qualified supervision; (f) the sequence of works in respect of works in area number 1 of the scheduled areas; and <i>(Amended 52 of 1990 s. 4)</i> (g) a performance review in respect of— (i) works in the scheduled areas; or (ii) works in sites outside the scheduled areas where—

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- (A) the Building Authority considers that the geological conditions need to be verified during construction and before an application for occupation permit is made under section 21;
- (B) the groundwater regime will be adversely affected by the works; or
- (C) the Building Authority is of the opinion that the works incorporate unconventional designs, the performance of which has not been fully demonstrated by local case histories, tests and investigations.
(Replaced 39 of 2000 s. 3)

A	B
7. Approval of plans showing, or consent to commence, site formation works, piling works, excavation works or foundation works.	7. Prescribe conditions subject to which the works may be carried out, being conditions that the Building Authority considers necessary to prevent a collapse, whether total or partial, or the likelihood of such a collapse, of any adjoining or other building, street or land or to prevent any adjoining or other building, street or land becoming so dangerous, or the likelihood of any such building, street or land becoming so dangerous, that it will collapse or be likely to collapse, either totally or partially. <i>(Added 27 of 1964 s. 3. Amended 40 of 1965 s. 2; 23 of 1969 s. 4; 72 of 1980 s. 5)</i>
	<i>(Added 44 of 1959 s. 4)</i>

(2) *(Repealed 15 of 2004 s. 19)*

17A. Incompatibility with sewage tunnel works

- (1) Notwithstanding anything in this Ordinance, where the Building Authority is of the opinion that any building works or the commencement of any building works would be incompatible with any sewage tunnel works or proposed sewage tunnel works, he may to such extent as is necessary to avoid such incompatibility—
 - (a) refuse to give his approval to any plan or to consent to the commencement of the building works;

- (b) withdraw any approval which he has or is deemed to have given to any plan or any consent to the commencement of the building works;
- (c) impose conditions on the giving of approval of plans showing piling works, excavation works or foundation works or consent to commence such works.

(2) In this section—

proposed sewage tunnel works (擬建污水隧道工程) means sewage tunnel works likely to be undertaken in connection with a proposed sewage tunnel referred to in a notice published in the Gazette pursuant to section 4 of the Sewage Tunnels (Statutory Easements) Ordinance (Cap. 438);

sewage tunnel works (污水隧道工程) has the same meaning as ***tunnel works*** in the Sewage Tunnels (Statutory Easements) Ordinance (Cap. 438).

(Added 74 of 1993 s. 16)

18. Authority to erect shoring in certain cases

- (1) Without prejudice to any other provision of this Ordinance and subject to subsection (2), where—
 - (a) for the purpose of satisfying the Building Authority that such precautions as are referred to in section 16(5) have been taken; or
 - (b) for the purpose of complying with a condition prescribed by the Building Authority under section 17,

the erection of shoring for any building is necessary, the person whose building works or proposed building works necessitate the erection of the shoring is hereby authorized to erect, or cause to be erected, such shoring as may be necessary, and the same may be affixed—

- (i) in or to or around the building for which it is erected, or otherwise in relation to that building as the circumstances require; or
- (ii) with the permission of the Director of Buildings, or an officer of the Buildings Department authorized in that behalf by the Director of Buildings either by name or by reference to an office, granted under subsection (3) and in accordance with such permission, in or over or upon any street, whether or not the street is on land held under lease from the Government, (*Amended L.N. 94 of 1986; L.N. 291 of 1993; 29 of 1998 s. 105*)

and maintained for such time as may be necessary and thereafter removed. (*Amended 46 of 1968 s. 2; L.N. 76 of 1982*)

- (2) Nothing in subsection (1) authorizes—
 - (a) the affixing of shoring in or over or upon any land, not being a street, unless the land is owned by either the owner of the building for which the shoring is erected or the person whose building works or proposed building works necessitate the erection of the shoring; or
 - (b) the affixing of shoring in or to or around, or otherwise in relation to, any building other than the building for which the shoring is erected.
- (3) Whenever it is necessary, for either of the purposes specified in subsection (1), to erect shoring in or over or upon a street, whether or not the street is on land held under lease from the Government, the Director of Buildings or an officer of the Buildings Department authorized in that behalf by the Director of Buildings, either by name or by reference to an office, may, if he thinks fit, permit the erection of such shoring, subject to such conditions as he considers necessary.

(Amended L.N. 76 of 1982; L.N. 94 of 1986; L.N. 291 of 1993; 29 of 1998 s. 105)

- (4) Any damage to a building for which shoring is erected pursuant to subsection (1) caused by or resulting from the erection, maintenance or dismantling of the shoring shall be made good as soon as practicable by the person whose building works or proposed building works necessitated the erection, maintenance or dismantling of the shoring. *(Amended 46 of 1968 s. 2)*
- (5) (a) Any occupier of a building for which shoring is erected pursuant to subsection (1), and any other person whatsoever, who suffers any loss or damage by reason of the erection, maintenance or dismantling of the shoring shall be entitled to recover compensation from the person whose building works or proposed building works necessitated the erection, maintenance or dismantling of the shoring. *(Amended 46 of 1968 s. 2)*
- (b) Where any dispute arises as to—
- (i) whether compensation is payable under this subsection,
 - (ii) the amount of any such compensation, or
 - (iii) the person to whom it is payable,
- the same shall be determined in accordance with the provisions of section 18A. *(Amended 46 of 1968 s. 2)*
- (6) (a) Any person authorized by the Building Authority in writing may enter any building specified in such authorization for the purpose of ascertaining what shoring may be required for the building for either of the purposes specified in subsection (1) or of ascertaining the manner in which shoring for the building may be affixed or for the purpose of erecting shoring for the building pursuant to subsection (1) or of maintaining

such shoring in good order or of inspecting the same.
(*Amended 68 of 1993 s. 9*)

- (b) An authorization granted to any person under paragraph (a) shall be deemed also to authorize any servant or agent of that person, and such an agent's servants, to enter the building for the like purpose.
- (c) If a magistrate is satisfied by evidence on oath that the entry to a building of any person authorized to enter the same by or under paragraph (a) or (b) has been obstructed, he may upon application by or on behalf of the person authorized to enter such building under paragraph (a) issue a warrant in the form in Schedule 3 authorizing— (*Amended 16 of 2011 s. 17*)
 - (i) each and every person authorized prior to the issue of the warrant to enter such building by or under paragraph (a) or (b); and
 - (ii) any police officer of or above the rank of inspector and any other police officer acting under his direction,

to enter such building on such occasion or occasions, and at such time or times, as may be necessary for the purpose for which the authorization under paragraph (a) was granted, and in the execution of such warrant any such police officer may use such force as may be necessary. (*Added 40 of 1965 s. 3*)

- (d) A copy, in the English language and in the Chinese language, of any warrant issued under paragraph (c) shall be posted in a conspicuous position on the building to which it relates. (*Added 40 of 1965 s. 3*)

(*Added 27 of 1964 s. 4*)

18A. Claims for compensation

- (1) Any occupier of a building for which shoring is erected pursuant to section 18(1), and any other person whatsoever, who has suffered loss or damage by reason of the erection, maintenance or dismantling of the shoring may, save where he and the person whose building works or proposed building works necessitated the erection, maintenance or dismantling of the shoring have entered into an agreement in writing for the payment of compensation, apply to the Lands Tribunal to hear and determine a dispute as to the matters referred to in section 18(5)(b). *(Amended 76 of 1981 s. 60)*
 - (2) Any application under subsection (1) shall, subject to subsection (3), be made within 3 years of the date on which the loss or damage was suffered. *(Amended 77 of 1994 s. 9)*
 - (3) The Lands Tribunal may, on application made for the purpose, extend the period specified in subsection (2) for making an application. *(Added 77 of 1994 s. 9)*
 - (4)-(9) *(Repealed 76 of 1981 s. 60)*
- (Added 46 of 1968 s. 3)*

19. Provision for urgent work

- (1) Where—
 - (a) any accident or emergency renders it necessary to shore up, underpin, demolish or otherwise make safe any existing building, or any natural, formed or man-made land, or to carry out any street works immediately; and
 - (b) notice in the specified form of such work and of the accident or emergency which necessitated the same is given to the Building Authority by the building owner, or the owner of the land or other person who under the terms of a Government lease is under an obligation to maintain the land, or by the person for whom the street works are being, or are to be, carried out either before

such work is authorized by him or within 48 hours after it has been commenced whichever is the earlier, *(Amended 68 of 1993 s. 10; 29 of 1998 s. 105)*

such work may be commenced without obtaining the Building Authority's consent.

- (2) If the Building Authority considers that the emergency no longer exists he may by order in writing served on the building owner, or the owner of the land or other person referred to in subsection (1), or person for whom the street works are being carried out require that building works cease until consent is obtained.
- (3) Any person may deviate from a supervision plan if urgent works are required to ensure safety of building works or street works to which the supervision plan relates. *(Added 54 of 1996 s. 17)*
- (4) The authorized person is required to give to the Building Authority as soon as practicable after the urgent work arises notice of—
 - (a) any material deviation from the supervision plan;
 - (b) the urgent work;
 - (c) a revised supervision plan prepared by the registered general building contractor, the registered specialist contractor, the registered minor works contractor, the registered structural engineer, the registered geotechnical engineer or the authorized person, as the case may require, detailing the procedures adopted to meet the urgent work; and *(Amended 15 of 2004 s. 20; 20 of 2008 s. 17)*
 - (d) any further amendments to any supervision plan arising out of the urgent work. *(Added 54 of 1996 s. 17)*

(Amended 44 of 1959 s. 5; 72 of 1980 s. 6)

20. Resumption of work suspended

- (1) Where any building works or street works for the commencement and carrying out of which the consent of the Building Authority has been obtained are not commenced within 3 months thereof, or if commenced are suspended for such period, such consent shall be deemed to be revoked.
- (2) The Building Authority may, upon application being made in the specified form, renew such consent and by order in writing impose such conditions as in his opinion are made necessary by such delay in commencement or by such suspension. *(Amended 68 of 1993 s. 11)*

(Replaced 44 of 1959 s. 6)

21. Occupation of new building

- (1) No new building shall be occupied in any way except by not more than 2 caretakers unless—
 - (a) in respect of such building the Building Authority has issued an occupation permit; or
 - (b) in respect of the whole or any part of the building which is being occupied there is a temporary occupation permit, issued by the Building Authority, which temporary occupation permit has not expired and has not been revoked by the Building Authority. *(Amended 23 of 1969 s. 5; 68 of 1993 s. 12)*
- (2) On receiving an application in the appropriate specified form, the Building Authority may issue— *(Amended 68 of 1993 s. 12)*
 - (a) an occupation permit in respect of the new building which is the subject of such application; or

- (b) a temporary occupation permit in respect of the whole or any part of a new building which is completed and which is the subject of the application. (*Amended 23 of 1969 s. 5*)
- (3) On the issue of a temporary occupation permit, the Building Authority may impose such conditions as he may consider necessary including a condition limiting the duration of the temporary occupation permit to such period as he may consider necessary and may revoke a temporary occupation permit for breach of any such condition by the service on the building owner of notice of revocation in writing. (*Amended 68 of 1993 s. 12*)
- (4) If an occupation permit is issued in respect of a building, every temporary occupation permit issued in respect of the whole or any part of the building shall thereupon be deemed to have been revoked. (*Amended 23 of 1969 s. 5*)
- (5) If a temporary occupation permit in respect of the whole or a part of a building has been revoked or has expired and an occupation permit has not been issued in respect of the building, the provisions of subsection (1) shall apply to the building or to such part of the building, as the case may be, on the expiration of 7 days from the expiry or revocation of the temporary occupation permit. (*Amended 23 of 1969 s. 5*)
- (6) The Building Authority may refuse to issue a temporary occupation permit or an occupation permit under this section where—
 - (a) any part of the building works has been carried out in contravention of any of the provisions of this Ordinance;
 - (b) any street works required under the provisions of this Ordinance in connexion with any new private street or any access road, on to which the building abuts or fronts or by which access is obtained, remain to be completed;

- (c) in the case of a building in which a liftway is provided, a lift has not yet been installed therein, unless the liftway has been protected to the satisfaction of the Building Authority in such manner as to avoid any danger to persons using the building;
 - (d) in the case of a building the plans whereof were certified by the Director of Fire Services in the terms indicated in section 16(1)(b)(ii), the applicant for the permit fails to produce to the Building Authority a certificate from the Director of Fire Services in such form as may be prescribed certifying that he is satisfied that the fire service installations and equipment shown on the plans aforesaid have been provided and are in efficient working order and satisfactory condition; (*Added 3 of 1964 s. 3*)
 - (e) in the case of a building to which by regulations a supply of water is required to be connected for any purpose, the Building Authority is not satisfied that connexion of a supply of water for every such purpose, which complies in every respect with all the requirements of the regulations, has been made to the building; or (*Added 16 of 1966 s. 6*)
 - (f) any performance review as required under item 6(g) in Column B of section 17(1) in the opinion of the Building Authority fails to state or justify that the building works have been adequately inspected and monitored in the course of construction or that the geotechnical design assumptions upon which the building works have been based are valid. (*Added 41 of 1982 s. 6. Amended 52 of 1990 s. 5; 39 of 2000 s. 4*)
- (7) Upon the expiration of 14 days from the date of receipt by the Building Authority of an application in the appropriate specified form, for a temporary occupation permit or for an

occupation permit, such permit shall be deemed to have been granted unless the Building Authority has by notice in writing served on the building owner refused to issue such permit, specifying the ground for such refusal. (*Amended 68 of 1993 s. 12*)

- (8) Where, in respect of a new building, an application under this section for a temporary occupation permit or for an occupation permit is submitted within 60 days of receipt by the Building Authority of a performance review required under section 17 in respect of building works for that building, the application shall, for the purpose of subsection (7), be deemed to have been received 60 days after receipt of the performance review. (*Added 41 of 1982 s. 6*)

(*Replaced 37 of 1961 s. 2*)

22. Powers of Building Authority

- (1) Subject to subsection (1A), the Building Authority or an authorized officer may at any time enter and where necessary, in the presence of a police officer, break into any premises or enter upon any land— (*Amended 24 of 2012 s. 4*)
- (a) to ascertain whether any building, structure, street or natural, formed or man-made land is dangerous or liable to become dangerous; (*Amended 72 of 1980 s. 7*)
 - (b) to inspect or test any groundwater drainage works, drainage works, drainage system, sewerage works or sewerage system; (*Amended 44 of 1959 s. 8; 41 of 1982 s. 7; 24 of 2012 s. 4*)
 - (c) to ascertain whether the provisions of this Ordinance or of any notice order or regulation hereunder are being complied with;

- (d) to carry out or cause to be carried out any work which he is authorized to carry out under this Ordinance.
(Amended 44 of 1959 s. 8)
- (1A) Except in case of emergency, neither the Building Authority nor an authorized officer may enter or break into the premises, or enter upon the land under subsection (1) unless—
 - (a) the entry is permitted by the owner, occupier, or person who appears to have control or management of the premises or land; or
 - (b) a warrant is obtained under subsection (1B). *(Added 24 of 2012 s. 4)*
- (1B) A magistrate may issue a warrant authorizing the Building Authority or an authorized officer to enter and, if necessary, break into any premises or enter upon any land for any of the purposes mentioned in subsection (1) if the magistrate is satisfied by information on oath that—
 - (a) there are reasonable grounds for suspecting—
 - (i) with respect to building works that have been or are being carried out to the premises or land—
 - (A) that there is a material divergence or deviation from any plan approved by the Building Authority under this Ordinance or required to be submitted to the Building Authority under the simplified requirements; or
 - (B) that they are not in compliance with the standard of structural stability, public health or fire safety established by regulations;
 - (ii) that the use of the premises has been changed in contravention of section 25(1) or (2);

- (iii) that the premises have been, or the land has been, rendered dangerous, or the premises are, or the land is, liable to become dangerous;
 - (iv) that the drains or sewers of the premises or land are in a defective or insanitary condition; or
 - (v) that a notice or order served under this Ordinance has not been complied with;
- (b) the entry into the premises or upon the land by the Building Authority or an authorized officer—
 - (i) was refused; or
 - (ii) could not be gained despite a visit made to the premises or land on at least 2 different days; and
- (c) notice of the intention to apply for a warrant has been served on the owner or occupier of the premises or land.
(Added 24 of 2012 s. 4)
- (1C) A warrant issued under subsection (1B) must specify—
 - (a) the premises or land to be entered;
 - (b) the purpose of the entry;
 - (c) the name and capacity of the person authorized to enter the premises or land; and
 - (d) the date of the issue of the warrant. *(Added 24 of 2012 s. 4)*
- (1D) If the Building Authority or an authorized officer enters or breaks into any premises, or enters upon any land, under a warrant issued under subsection (1B), the Building Authority or authorized officer must produce to the owner, occupier, or person who appears to have control or management of the premises or land the warrant for inspection. *(Added 24 of 2012 s. 4)*

- (1E) When entering any premises or land under this section, the Building Authority or an authorized officer may be accompanied by any person that the Building Authority or authorized officer considers necessary for the purpose of the entry. *(Added 24 of 2012 s. 4)*
- (1F) On leaving any unoccupied premises or land entered under this section, the Building Authority or an authorized officer must leave the premises or land as effectually secured against trespassers as the premises or land was found at the time of entry. *(Added 24 of 2012 s. 4)*
- (1G) A warrant issued under subsection (1B) continues in force until the purpose for which entry is necessary has been fulfilled. *(Added 24 of 2012 s. 4)*
- (2) For the purposes of subsection (1)—
- (a) access to every part of any building works or street works shall be provided by the registered general building contractor, registered specialist contractor or registered minor works contractor; and *(Replaced 20 of 2008 s. 18)*
 - (b) the Building Authority or an authorized officer may take any steps that he or she considers necessary, including the making of openings and the taking of reasonable samples. *(Amended 44 of 1959 s. 8; 24 of 2012 s. 4)*
- (3) The Building Authority may by order in writing require an authorized person to carry out such tests as may be specified in the order. *(Amended 52 of 1974 s. 9)*
- (4) The Building Authority may specify any form for the purposes of this Ordinance. *(Added 68 of 1993 s. 13)*
- (5) In this section—

authorized officer (獲授權人員) means a public officer authorized in writing by the Building Authority for any of the purposes mentioned in subsection (1). (*Added 24 of 2012 s. 4*)

23. Building works, etc. to cease on order of Building Authority

(1) Where in the opinion of the Building Authority— (*Amended 54 of 1996 s. 19*)

- (a) any building works or street works are being carried out in contravention of any of the provisions of this Ordinance or are connected with any building works that have been so carried out; or
- (b) any building works that are being carried out—
 - (i) will cause, or will be likely to cause, a total or partial collapse of any adjoining or other building, street or natural, formed or man-made land;
 - (ii) will render, or will be likely to render, any adjoining or other building, street or natural, formed or man-made land so dangerous that it will collapse, or be likely to collapse, either totally or partially; or (*Amended 72 of 1980 s. 8; 54 of 1996 s. 19*)
 - (iii) are in dangerous conditions within the site of the building works, (*Added 54 of 1996 s. 19. Amended 16 of 2011 s. 18*)

he may by order in writing served on the registered general building contractor, registered specialist contractor, registered minor works contractor or other person carrying out such works, as the case may be, require that such works cease until the order is withdrawn. (*Amended 20 of 2008 s. 19*)

(2) The Building Authority may by order in writing served on the registered general building contractor, registered specialist contractor, registered minor works contractor or

other person carrying out building works or street works require that the works cease if there has been a material deviation— (*Amended 20 of 2008 s. 19*)

(a) from the technical memorandum for the preparation of a supervision plan for the building works or street works; or

(b) from the supervision plan for the works,

which in the opinion of the Building Authority may lead to a dangerous or potentially dangerous situation. (*Added 54 of 1996 s. 19*)

(3) The Building Authority may by order in writing served on the registered general building contractor, registered specialist contractor, registered minor works contractor or other person carrying out building works or street works require that the works cease if he is satisfied that a condition imposed on the giving of his approval or consent has not been, or is not able to be, complied with. (*Added 54 of 1996 s. 19. Amended 20 of 2008 s. 19*)

(4) If the Building Authority orders that the works cease, the person carrying out the building works or street works shall cease to continue the works as quickly and as safely as possible. (*Added 54 of 1996 s. 19*)

(5) The Building Authority may in withdrawing an order that works cease make the withdrawal subject to reasonable conditions. (*Added 54 of 1996 s. 19*)

(*Replaced 40 of 1965 s. 4. Amended 43 of 1993 s. 5*)

24. Order for demolition, removal, or alteration of building, building works (other than minor works commenced under simplified requirements) or street works

(*Amended 20 of 2008 s. 20*)

- (1) Where any building has been erected, or where any building works or street works have been or are being carried out in contravention of any of the provisions of this Ordinance the Building Authority may by order in writing require—
- (a) the demolition of the building, building works, or street works; or
 - (b) *(Repealed 43 of 1993 s. 6)*
 - (c) such alteration of the building, building works or street works as may be necessary to cause the same to comply with the provisions of this Ordinance, or otherwise to put an end to the contraventions thereof,
- and in every case specify the time within which the demolition, alteration or work required by such order shall be commenced and the time within which the same shall be completed. *(Amended 16 of 1966 s. 7; 43 of 1993 s. 6)*
- (1A) Subsection (1) does not apply in respect of minor works commenced under the simplified requirements. *(Added 20 of 2008 s. 20)*
- (2) An order made under subsection (1) shall be served on—
- (a) in the case of a building or building works but subject to subsection (2A), the owner of the land or premises on which the building has been erected or on which the building works have been or are being carried out;
 - (b) in the case of street works, the frontagers; and
 - (c) in the case of building works the subject matter of which is a signboard—
 - (i) the person for whom the signboard has been erected or is being erected; or
 - (ii) if that person cannot be found, the person who would receive any rent or other money consideration if the signboard were hired out or

the person who is receiving such rent or money consideration; or

- (iii) if the persons referred to in subparagraphs (i) and (ii) cannot be found, the owner of the land or premises on which the signboard has been erected or is being erected. *(Replaced 15 of 2004 s. 21)*

(2A) Where the building or building works referred to in subsection (2)(a) is or are—

- (a) connected to land or premises (in this section referred to as ***other land or premises***) other than the land or premises on which the building has been erected or on which the building works have been or are being carried out; and
- (b) occupied or used by the owner or occupier of that other land or premises,

subsection (2)(a) shall not apply and in such a case, an order made under subsection (1) in respect of the building or building works shall be served on the owner of that other land or premises. *(Added 15 of 2004 s. 21)*

(2B) References in subsections (2)(a) and (2A) to building works do not include references to building works the subject matter of which is a signboard. *(Added 15 of 2004 s. 21)*

(2C) The Building Authority may, upon the service of an order under subsection (2)(a), (b) or (c)(iii) or (2A), cause the order to be registered in the Land Registry against—

- (a) if the order has been served on the owner of any land or premises in accordance with subsection (2)(a) or (c)(iii), the land or premises;
- (b) if the order has been served on the frontagers in accordance with subsection (2)(b), the premises of the frontagers to which the street works relate; or

- (c) if the order has been served on the owner of other land or premises in accordance with subsection (2A), that other land or premises. *(Added 15 of 2004 s. 21)*
- (3) If an order made under subsection (1) is not complied with, the Building Authority may demolish or alter or cause to be demolished or altered such building, building works or street works. *(Amended L.N. 283 of 1986; 43 of 1993 s. 6)*
- (4) Subject to subsection (4A), the cost of any demolition or alteration under subsection (3) in relation to the building, building works or street works to which the order relates shall be recoverable from—
 - (a) if the order had been served on the owner of any land or premises in accordance with subsection (2)(a) or (c)(iii), that owner;
 - (b) if the order had been served on the frontagers in accordance with subsection (2)(b), those frontagers;
 - (c) if the order had been served on a person in accordance with subsection (2)(c)(i) or (ii), that person; or
 - (d) if the order had been served on the owner of other land or premises in accordance with subsection (2A), that owner. *(Replaced 15 of 2004 s. 21)*
- (4A) Where the order has been registered with the Land Registry in accordance with subsection (2C), the cost of any demolition or alteration under subsection (3) in relation to the building, building works or street works to which the order relates shall be recoverable from—
 - (a) if the order had been served on the owner of any land or premises in accordance with subsection (2)(a) or (c)(iii), the person who, as at the date of completion of the demolition or alteration, is the owner of that land or premises;

- (b) if the order had been served on the frontagers in accordance with subsection (2)(b), the persons who, as at the date of completion of the demolition or alteration, are the frontagers to which the street works relate; or
 - (c) if the order had been served on the owner of other land or premises in accordance with subsection (2A), the person who, as at the date of completion of the demolition or alteration, is the owner of that other land or premises. *(Added 15 of 2004 s. 21)*
- (4B) Where the cost of any demolition or alteration is recovered from frontagers under subsection (4) or (4A), the Building Authority shall apportion the cost—
 - (a) in the case of private streets, according to the frontages of the premises owned by such frontagers; or
 - (b) in the case of access roads, equally. *(Added 15 of 2004 s. 21)*
- (4C) A certificate purporting to be under the hand of the Building Authority and stating the date of completion of the demolition or alteration under subsection (3) shall be prima facie evidence of that fact. *(Added 15 of 2004 s. 21)*
- (5) *(Repealed 43 of 1993 s. 6)*
- (6) Subsection (1) has effect subject to— *(Added 8 of 2017 s. 117 and E.R. 4 of 2017. Amended 41 of 2025 s. 93)*
 - (a) section 112 of the Private Columbaria Ordinance (Cap. 630); and
 - (b) section 72 of the Basic Housing Units Ordinance (Cap. 658). *(Amended 41 of 2025 s. 93 and E.R. 2 of 2025)*

(Replaced 44 of 1959 s. 10)

24A. Order to cease or remedy dangerous works

- (1) Where any building works or street works have been or are being, carried out in such a manner as, in the opinion of the Building Authority, will cause, or will be likely to cause, a risk of injury to any person or damage to any property, the Building Authority may, by order in writing, require that such work as he may specify therein be carried out, to ensure that the works will cease to constitute such a risk. (*Amended 43 of 1993 s. 7*)
- (2) An order made under subsection (1)—
 - (a) may specify—
 - (i) the manner in which the work specified in the order shall be carried out;
 - (ii) the time before which the work shall be commenced and the time by which it shall be completed;
 - (iii) that the work shall be carried out with due diligence to the satisfaction of the Building Authority; and
 - (b) shall be addressed to and served on—
 - (i) in the case of completed works, the owner thereof; and
 - (ii) in any other case, the person for whom the works are being carried out or his agent.
- (3) If a person fails to comply with an order served on him under subsection (1), the Building Authority may, without any further notice, carry out, or cause to be carried out, such work as may be necessary to ensure that the order will be complied with.
- (4) The cost of any work carried out, or caused to be carried out, by the Building Authority under subsection (3) may be

recovered by the Building Authority from the person upon whom the order was served under subsection (2).

(Added 71 of 1972 s. 3)

24AA. Order for demolition, removal, or alteration of minor works commenced under simplified requirements

- (1) The Building Authority may, by order in writing served according to subsection (4), require a person to take the action described in subsection (2) in respect of any minor works commenced under the simplified requirements, if the minor works have been or are being carried out in contravention of—
 - (a) any provisions of this Ordinance;
 - (b) an approved plan or partly approved plan under the Town Planning Ordinance (Cap. 131) or a draft plan prepared under that Ordinance; or *(Replaced 25 of 2023 s. 108)*
 - (c) any relevant master lay-out plan approved by the Town Planning Board under section 4A(2) of the Town Planning Ordinance (Cap. 131).
- (2) The action that the Building Authority may require a person to take under subsection (1) is—
 - (a) the demolition of the minor works; or
 - (b) such alteration of the minor works as may be necessary to cause the same to comply with the provisions of this Ordinance, the approved plan, partly approved plan or draft plan or the master lay-out plan (as the case may be), or otherwise to put an end to the contravention referred to in subsection (1)(a), (b) or (c). *(Amended 25 of 2023 s. 108)*

- (3) The Building Authority shall specify in the order the time within which the action required by the order must be commenced and completed.
- (4) An order made under subsection (1) shall be served on—
- (a) where the subject matter of the minor works is not a signboard—
 - (i) the person for whom the minor works have been or are being carried out; or
 - (ii) if that person is not the owner of the land or premises on which the minor works have been or are being carried out and cannot be found, subject to subsection (5), the owner of such land or premises; or
 - (b) where the subject matter of the minor works is a signboard—
 - (i) the person for whom the signboard has been or is being erected;
 - (ii) if that person cannot be found, the person who would receive any rent or other money consideration if the signboard were hired out or the person who is receiving such rent or money consideration; or
 - (iii) if the persons referred to in subparagraphs (i) and (ii) are not the owner of the land or premises on which the signboard has been or is being erected and cannot be found, the owner of such land or premises.
- (5) Where the place on which the minor works referred to in subsection (4)(a)(ii) are carried out is—
- (a) connected to land or premises (in this section referred to as *other land or premises*) other than the land or

premises on which the minor works have been or are being carried out; and

- (b) occupied or used by the owner or occupier of that other land or premises,

subsection (4)(a)(ii) does not apply, and in such a case, the Building Authority shall serve the order made under subsection (1) on the owner of that other land or premises.

- (6) The Building Authority may cause an order served under subsection (4)(a)(ii) or (b)(iii) or (5) to be registered in the Land Registry against—
 - (a) if the order has been served on the owner of any land or premises in accordance with subsection (4)(a) or (b), the land or premises; or
 - (b) if the order has been served on the owner of other land or premises in accordance with subsection (5), that other land or premises.
- (7) If an order made under subsection (1) is not complied with, the Building Authority may demolish or alter or cause to be demolished or altered the minor works.
- (8) Subject to subsection (9), the cost of any demolition or alteration under subsection (7) in relation to the minor works to which the order relates shall be recoverable as a debt due to the government from—
 - (a) if the order had been served on a person in accordance with subsection (4)(a)(i) or (b)(i) or (ii), that person;
 - (b) if the order had been served on the owner of any land or premises in accordance with subsection (4)(a) or (b), that owner; or
 - (c) if the order had been served on the owner of other land or premises in accordance with subsection (5), that owner.

- (9) Where the order has been registered with the Land Registry in accordance with subsection (6), the cost of any demolition or alteration under subsection (7) in relation to the minor works to which the order relates is recoverable from—
- (a) if the order had been served on the owner of any land or premises in accordance with subsection (4)(a) or (b), the person who, as at the date of completion of the demolition or alteration, is the owner of that land or premises;
 - (b) if the order had been served on the owner of other land or premises in accordance with subsection (5), the person who, as at the date of completion of the demolition or alteration, is the owner of that other land or premises.
- (10) A certificate purporting to be under the hand of the Building Authority and stating the date of completion of the demolition or alteration under subsection (7) is prima facie evidence of that fact.
- (11) Subsection (1) has effect subject to section 72 of the Basic Housing Units Ordinance (Cap. 658). (*Added 41 of 2025 s. 94 and E.R. 2 of 2025*)

(Added 20 of 2008 s. 21)

24B. Priority demolition

- (1) Where any building has been erected or any building works have been or are being carried out in contravention of any of the provisions of this Ordinance, and it appears to the Building Authority that—
- (a) the building or building works constitute an imminent danger to life or property;

- (b) the building has been erected or the building works have been or are being carried out with a view to sale, letting or other disposal;
- (c) the building is situated or the building works have been or are being carried out in a common part of any building or land in multiple ownership and the existence of the building or building works is seriously detrimental to the amenities of the neighbourhood; or
- (d) the building or building works constitute a public nuisance,

the Building Authority may, instead of making an order under section 24(1), apply to the District Court for an order under subsection (9).

- (2) Notice of an application for an order under subsection (9) shall be given by the building Authority by posting a copy of such notice upon a conspicuous part of the building or building works to which the notice relates, and upon being so posted such notice shall be deemed to be notice to all persons of such application.

- (3) The notice given under subsection (2) shall be given by the Building Authority at least—
- (a) where any circumstance described in paragraph (a) or (d) of subsection (1) exists, 3 days; or
 - (b) in any other case, 7 days,
- before the day of hearing by the District Court of the application.
- (4) The notice given under subsection (2) shall be in both English and Chinese and shall—
- (a) state the time and place set for the hearing of the application and advise that any person affected by such application may apply under subsection (7) to be heard at the hearing of the application;
 - (b) specify the building or building works sought to be demolished or altered;
 - (c) specify such premises or any part thereof, if any, which it is necessary to close in order that the demolition or alteration works sought to be carried out in respect of the building or building works can be carried out without danger to the occupiers of the premises or that part or to the public;
 - (d) state that no work other than the demolition or alteration of the building or building works as described in the notice shall be carried out on the building or building works to which the notice relates unless authorized by the Building Authority or until a notice of withdrawal is posted under subsection (5) or the application under subsection (1) is refused;
 - (e) state that no person shall obliterate, deface or otherwise render illegible the notice or, unless he is authorized to do so by the Building Authority, remove it;

- (f) state that any person who contravenes the restriction referred to in paragraph (d) is liable to prosecution and the prescribed penalty; and
 - (g) state that any person who contravenes the restriction referred to in paragraph (e) is liable to prosecution and the prescribed penalty.
- (5) The Building Authority may at any time withdraw an application under subsection (1) and the notice given under subsection (2) by—
 - (a) giving notice in writing to the District Court; and
 - (b) posting a copy of such notice upon a conspicuous part of the building or building works to which the notice relates.
- (6) Upon the posting of a notice given under subsection (2), no person shall carry out any work, other than the demolition or alteration of the building or building works as described in the notice, on the building or building works concerned unless authorized to do so by the Building Authority.
- (7) A person affected by an application under subsection (1) may apply to be heard by filing an application in the District Court not less than 1 working day before the date of hearing of the application under subsection (1) and he shall serve a copy of his application on the Building Authority not less than 1 working day before the date of hearing and, if he intends to be legally represented at the hearing, a notice to that effect.
- (8) No person shall obliterate, deface or otherwise render illegible the notice given under subsection (2) or, unless he is authorized to do so by the Building Authority, remove it.
- (9) Upon the application of the Building Authority under subsection (1), the District Court may, on being satisfied—

- (a) that notice of the application has been given in accordance with subsections (2), (3) and (4); and
- (b) that any one or more of the circumstances set out in subsection (1)(a) to (d) exist,

and after considering any representation of a person who has applied to be heard under subsection (7), if any, make an order for the demolition or alteration of the building or building works.

(10) An order made under subsection (9) shall—

- (a) specify the building or building works to be demolished or altered;
- (b) authorize the Building Authority to demolish or cause to be demolished or, as the case may be, to alter or cause to be altered the building or building works specified under paragraph (a) so that it complies with the provisions of this Ordinance, or otherwise to prevent any further contravention thereof;
- (c) authorize the Building Authority to carry out or cause to be carried out such other incidental works as in the opinion of the Building Authority may be necessary or expedient;
- (d) specify the premises or such part of the premises, if any, to be closed in order that the demolition or alteration works authorized by the order can be carried out without danger to the occupiers of the premises or that part or to the public;
- (e) require the work described in paragraphs (b) and (c) to be done within such time limits as may be specified;
- (f) where appropriate, order the closure of the premises or part specified under paragraph (d) under the direction of a police officer; and

- (g) reproduce in clear and legible form in English and Chinese subsections (14), (17), (19) and (20).
- (11) A copy of an order under subsection (9) shall be—
 - (a) posted by the Building Authority upon a conspicuous part of the building or building works to which the order relates; and
 - (b) served by the Building Authority on the occupiers, if any, of the building or building works who have notified the Building Authority of their addresses.
- (12) Where the District Court refuses to make an order under subsection (9), the Building Authority shall—
 - (a) post a notice of refusal of the application upon a conspicuous part of the building or building works to which the application relates; and
 - (b) serve a copy thereof on the occupiers, if any, of the building or building works who have notified him of their addresses.
- (13) The prohibition in subsection (6) shall cease to have effect upon the posting of a notice of withdrawal under subsection (5) or the notice of refusal under subsection (12).
- (14) Save with the permission in writing of the Building Authority, no person, other than a public officer in the course of his duty, shall enter or be in the premises or part of the premises which are for the time being ordered to be closed under this section.
- (15) Where he thinks fit, the Building Authority may, subject to such conditions as he thinks fit, by notice in writing permit any person to enter and be in the premises or part of the premises which are for the time being ordered to be closed under this section.

- (16) Any permission granted under subsection (15) may be cancelled by the Building Authority at any time and for any reason.
- (17) Where an order under subsection (9) is in force and any premises or part of any premises have been ordered to be closed under the order—
 - (a) any police officer of or above the rank of inspector, with such assistance as may be necessary, may remove therefrom any person who is in the premises or part of the premises in contravention of subsection (14); and
 - (b) the Building Authority may seal, or cause to be sealed, all or any of the entrances to or exits from the premises or part thereof.
- (18) The Building Authority may recover from the owner of the building or building works, or the person who authorizes the erection of the building or the carrying out of the building works, the cost of any works that the Building Authority carries out, or causes to be carried out, under this section.
- (19) The District Court may, on application by the Building Authority or a person affected by an order under subsection (9), vary or discharge an order under subsection (9).
- (20) Notice of an application under subsection (19) shall be given by posting a copy of the notice upon a conspicuous part of the building or building works to which the application relates or upon a conspicuous part of the premises where the building or building works are situated, as may be appropriate, and—
 - (a) where the Building Authority is the applicant, by serving a copy thereof on the occupiers or former occupiers, if any, of the building or building works who have notified the Building Authority of their addresses; or

- (b) where a person affected by an order under subsection (9) is the applicant, by serving a copy thereof on the occupiers or former occupiers, if any, of the building or building works and on the Building Authority.
- (21) The notice given under subsection (20) shall be given by the applicant at least—
 - (a) where the order under subsection (9) sought to be varied or discharged was made by the District Court on being satisfied that any circumstance described in paragraph (a) or (d) of subsection (1) existed, 3 days; or
 - (b) in any other case, 7 days,before the day of hearing by the District Court of the application under subsection (19).
- (22) Where an order for variation or discharge of an order under subsection (9) is made upon an application under subsection (19), the applicant shall—
 - (a) post a notice of the order upon a conspicuous part of the building or building works concerned or upon a conspicuous part of the premises where the building or building works are situated, as may be appropriate; and
 - (b) serve a copy thereof on the former occupiers, if any, of the building or building works whose addresses are known to the applicant.

- (23) Where the Building Authority completes the works authorized by an order under subsection (9), the Building Authority shall post a notice of completion of works upon a conspicuous part of the building or building works, or if the building or building works have been demolished, upon a conspicuous part of the premises or part of the premises in or on which the building or building works were formerly situated or carried out or the entrance to such premises or part, and upon the posting of such notice, the order made under subsection (9) shall cease to have effect.
- (24) Every notice served under subsection (23) shall—
- (a) specify the date upon which the order under subsection (9) ceases to have effect; and
 - (b) where the order ordered the closure of the premises or part of the premises, specify the premises or part of the premises to which the notice relates and, where appropriate, state that such premises or part may be re-occupied.
- (25) The decision of the Building Authority to apply for an order under subsection (9) or to give notice of an application for such an order shall not be subject to appeal under section 44(1).
- (26) A refusal by the District Court to make an order under subsection (9) shall not be a bar to the subsequent making of an order under section 24 by the Building Authority.

(Added 91 of 1990 s. 3)

24C. Notice for demolition or alteration of building or building works

- (1) Where any building has been erected, or where any building works have been or are being carried out, in contravention of any of the provisions of this Ordinance, the Building

Authority, without prejudice to his powers under sections 24 and 24B, may issue a notice in writing—

- (a) identifying the location of the building or building works and the land or premises affected by the building or building works;
 - (b) describing the building or building works which, in the opinion of the Building Authority, has been erected or have been or are being carried out in contravention of any of the provisions of this Ordinance and stating those provisions;
 - (c) stating the powers of the Building Authority under this Ordinance in relation to the building or building works; and
 - (d) specifying a date after which the notice will be registered with the Land Registry in accordance with subsection (4) if before that date—
 - (i) the building or building works is or are not demolished; or
 - (ii) the building or building works is or are not altered in such a manner as to cause the building or building works to comply with those provisions, or otherwise to put an end to the contraventions of those provisions.
- (2) Subject to subsection (3), a notice issued under subsection (1) shall be served on the owner of the land or premises on which the building has been erected or on which the building works have been or are being carried out.
- (3) Where the building or building works is or are—
- (a) connected to land or premises (in this section referred to as *other land or premises*) other than the land or premises on which the building has been erected or on

which the building works have been or are being carried out; and

- (b) occupied or used by the owner or occupier of that other land or premises,

subsection (2) shall not apply and in such a case, a notice issued under subsection (1) shall be served on the owner of that other land or premises.

- (4) The Building Authority shall, where the building or building works is or are not demolished or altered in the manner described in subsection (1)(d)(ii) before the date specified in the notice, cause the notice to be registered in the Land Registry against—
 - (a) if the notice has been served on the owner of any land or premises in accordance with subsection (2), the land or premises; or
 - (b) if the notice has been served on the owner of other land or premises in accordance with subsection (3), that other land or premises.
- (5) A notice under this section shall be deemed to be an instrument affecting land or premises and shall be registrable in the Land Registry.
- (6) Where the building or building works the subject of a notice issued under subsection (1) has or have been demolished or altered in the manner described in subsection (1)(d)(ii), the Building Authority may lodge in the Land Registry an appropriate instrument of satisfaction against that notice.
- (7) Subsection (1) has effect subject to— *(Added 8 of 2017 s. 118 and E.R. 4 of 2017. Amended 41 of 2025 s. 95)*
 - (a) section 112 of the Private Columbaria Ordinance (Cap. 630); and

- (b) section 72 of the Basic Housing Units Ordinance (Cap. 658). *(Amended 41 of 2025 s. 95 and E.R. 2 of 2025)*

(Added 15 of 2004 s. 22)

25. Change in use of buildings

- (1) One month's notice in the specified form shall be given to the Building Authority of any intended material change in the use of a building by the person intending to carry out or authorizing the carrying out of such change. *(Amended 68 of 1993 s. 14)*
- (2) Where in the opinion of the Building Authority any building is not suitable by reason of its construction for its present or intended use, he may by order in writing served on the owner or occupier—
- (a) within 1 month of the receipt of a notice under subsection (1) prohibit such intended use; or
- (b) require the owner or occupier to discontinue such present use of the building within 1 month from the service of the order:

Provided that the Building Authority may permit by notice in writing such building works as he deems necessary for the purpose of rendering the building suitable for its present or intended use.

- (3) The use of a building shall be deemed to be materially changed—
- (a) where the carrying out of building works for the erection of a building intended for such use would have contravened the provisions of this Ordinance; or

- (b) where the Building Authority could have refused to give approval to plans of such building works under section 16(1)(g). (*Replaced 44 of 1959 s. 11*)

26. Dangerous buildings

- (1) Where in the opinion of the Building Authority any building has been rendered dangerous or liable to become dangerous by fire, wind, rain, dilapidation, use, lack of fire escapes or any other cause, the Building Authority may by order in writing served on the owner declare such building to be dangerous or liable to become dangerous. (*Amended 68 of 1993 s. 15*)
- (2) Such order may—
 - (a) require the demolition of the whole or part of such building;
 - (b) require that the building be made safe generally;
 - (c) specify work that must be done to make such building safe;
 - (d) require that shoring shall be erected and may specify the manner and location thereof;
 - (e) require a fence or hoarding for the protection of the public;
 - (f) require the closure of such building; and
 - (g) specify the time within which the demolition, shoring, erection of fencing or hoarding, closure or other work or thing required by such order shall be commenced and the time within which the same shall be completed. (*Amended 16 of 1966 s. 8*)
- (2A) The Building Authority may, upon the service of an order under this section, cause the order to be registered by

memorial in the Land Registry against the building to which the order relates. (*Added 55 of 1996 s. 3*)

- (3) Where the owner of a building which in the opinion of the Building Authority has been rendered dangerous or liable to become dangerous by fire, wind, rain, dilapidation, use, lack of fire escapes or any other cause, cannot be found or fails to comply with the requirements of an order served under this section, the Building Authority may carry out or cause to be carried out the work specified in such order or such other work as he considers to be necessary and, subject to subsection (3A), the cost of such work shall be recoverable from that owner. (*Amended 16 of 1966 s. 8; 55 of 1996 s. 3*)
- (3A) If the order has been registered with the Land Registry in accordance with subsection (2A), the cost of any work that the Building Authority carried out or caused to be carried out under subsection (3) shall be recoverable from any person who, as at the date of completion of the work, is the owner of the building to which the order relates. (*Added 55 of 1996 s. 3*)
- (3B) A certificate purporting to be under the hand of the Building Authority and stating the date of completion of any work carried out under subsection (3) shall be prima facie evidence of that fact. (*Added 55 of 1996 s. 3*)
- (4) In cases of emergency the Building Authority may carry out or cause to be carried out such work as may appear to him to be necessary either without notice to the owner, or before or after such notice, and so far as it is in the opinion of the Building Authority attributable to such emergency the cost thereof shall be recoverable from the owner. The decision of the Building Authority that the particular case is one of emergency shall be final and binding on all persons.
- (5) This section shall apply to any building works as it does to any building with the following modifications—

- (a) any reference in this section to the owner of any building shall, in the case of building works, mean—
 - (i) in the case of completed works, the owner thereof; and
 - (ii) in any other case, the person for whom the works are being carried out or his agent;
- (b) any order of the Building Authority under this section may, where the building works are appurtenant to any building, extend to that building; and (*Amended L.N. 159 of 1990*)
- (c) subsection (2)(f) shall be construed as relating to any building to which the building works are appurtenant. (*Added 59 of 1983 s. 2*)

26A. Defective buildings

- (1) Where, on inspection, the Building Authority finds any dilapidation or defect in a building he may by order in writing served on the owner of such building require—
 - (a) such works as may be specified in the order to be carried out;
 - (b) an authorized person to be appointed to carry out such investigation in relation to the building as may be so specified; and
 - (c) the submission for approval by the Building Authority of proposals for remedial work to be carried out as regards the dilapidation or defect, being proposals based on the findings of the investigation,within such time or times as may be specified in the order.
- (2) Where proposals for work are submitted pursuant to an order under subsection (1), the Building Authority may—
 - (a) approve the proposals;

- (b) require amendments to or substitution of the proposals; or
 - (c) refuse to approve the proposals.
- (3) On approving any proposal for remedial work required to be submitted under subsection (1), the Building Authority may by order in writing served on the owner referred to in that subsection require the carrying out of such approved work within such time as may be specified in the order.
- (4) All work and investigations specified in an order under this section shall be carried out to such standard acceptable to the Building Authority and in compliance with the regulations.
- (4A) The Building Authority may, upon the service of an order under this section, cause the order to be registered by memorial in the Land Registry against the building to which the order relates. (*Added 55 of 1996 s. 4*)
- (5) Where the owner referred to in subsection (1) cannot be found or fails to comply with any requirement of an order served under this section or where there is a failure to comply with the requirement in subsection (4) or where approval is refused for proposals submitted under this section, the Building Authority may, without further notice, carry out or cause to be carried out—
 - (a) all or any part of the work or investigation specified in the order;
 - (b) such other investigation as he considers to be necessary or expedient; and
 - (c) such remedial work as he considers to be necessary or expedient as regards the dilapidation or defect, having had regard to the findings of the investigation in relation to the building, whether such investigation is done by the owner referred to in subsection (1) or by the Building Authority,

and, subject to subsection (6), the Building Authority may recover the cost of such work or investigation from that owner. *(Amended 55 of 1996 s. 4)*

- (6) If the order has been registered with the Land Registry in accordance with subsection (4A), the cost of any work or investigation that the Building Authority carried out or caused to be carried out under subsection (5) shall be recoverable from any person who, as at the date of completion of the work or investigation (as the case may be), is the owner of the building to which the order relates. *(Added 55 of 1996 s. 4)*
- (7) A certificate purporting to be under the hand of the Building Authority and stating the date of completion of any work or investigation carried out under subsection (5) shall be prima facie evidence of that fact. *(Added 55 of 1996 s. 4)*

(Added 77 of 1992 s. 2)

27. Closure Order

- (1) Upon the application of—
 - (a) the Building Authority, where he is of the opinion that—
 - (i) any building is dangerous or liable to become dangerous; or
 - (ii) any building should be closed in order to enable any works, which he is empowered to carry out or cause to be carried out under this Part, to be carried out without danger to the occupiers or to the public; or *(Replaced 59 of 1983 s. 3)*
 - (b) the owner—
 - (i) where a notice has been served upon him by the Building Authority requiring closure of a building under section 26; or

- (ii) where the Building Authority has supplied a certificate to him showing that a building should be closed in order to enable building works to be carried out without danger to the occupiers or to the public,

the District Court shall on being satisfied that notice has been given in accordance with the provisions of subsection (2) make a Closure Order: (*Amended 35 of 1969 Schedule*)

Provided that nothing in paragraph (b)(ii) shall entitle an owner to carry out any building works which would result in a contravention of Part I of the Landlord and Tenant (Consolidation) Ordinance (Cap. 7).

- (2) (a) Not less than 7 days' notice of intention to apply for a Closure Order shall be given by the person making such application by posting a copy of such notice upon a conspicuous part of the building to be affected, and upon being so posted such notice shall be deemed to be notice to all persons of such intention: (*Amended 40 of 1965 s. 5*)

Provided that in the case of an emergency such notice shall be given as is practicable.

- (b) The notice shall reproduce in clear and legible form subsections (8), (10) and (11) in both the English and Chinese languages. (*Amended 23 of 1969 s. 6*)
- (3) (*Repealed 23 of 1969 s. 6*)
- (4) A Closure Order made under this section shall—
 - (a) specify the building to be closed; and
 - (b) order the closure thereof under the direction of a police officer. (*Amended 23 of 1969 s. 6*)
- (5) (a) Save with the permission in writing of the Building Authority, no person, other than a public officer in the

course of his duty, shall enter or be in a building at any time while a Closure Order is in force in respect of that building.

- (b) Where he thinks fit, the Building Authority may, subject to such conditions as he thinks fit, by notice in writing permit any person to enter and be in a building while a Closure Order is in force in respect of that building.
 - (c) Any permission granted under paragraph (b) may be cancelled by the Building Authority at any time and for any reason. *(Replaced 40 of 1965 s. 5)*
- (6) Where a Closure Order is in force in respect of a building—
 - (a) any police officer of or above the rank of inspector, with such assistance as may be necessary, may remove therefrom any person who is in the building in contravention of subsection (5)(a); and
 - (b) the Building Authority may seal, or cause to be sealed, all or any of the entrances to or exits from the building. *(Added 40 of 1965 s. 5)*
- (7) The Building Authority may recover from the owner of the building the cost of any works that he carries out, or causes to be carried out, under subsection (6)(b). *(Added 40 of 1965 s. 5)*
- (8) A Closure Order shall remain in force in respect of a building until—
 - (a) the Building Authority has caused a notice, to be known as a notice of expiry of the Closure Order to be posted upon a conspicuous part of the building to which the Closure Order relates and, subject to subsection (11), has served a copy of the notice of expiry on the owner of the building; or

- (b) the building to which the Closure Order relates is completely demolished or otherwise ceases to exist, as the case may be. *(Replaced 55 of 1996 s. 5)*
- (9) Every notice of expiry of a Closure Order shall specify—
 - (a) the building to which it relates; and
 - (b) the date upon which the Closure Order expires. *(Replaced 23 of 1969 s. 6)*
- (10) Where an owner has received a copy of a notice of expiry of a Closure Order under subsection (8)(a), such owner shall— *(Amended 55 of 1996 s. 5)*
 - (a) cause copies thereof to be served upon all former occupiers of the building who have notified him of their addresses; and
 - (b) within 14 days of the date of such notice, serve upon the Building Authority a certificate in such form as the Building Authority may specify, setting out—
 - (i) the names and addresses of such former occupiers of the building as have notified him of their addresses; and
 - (ii) the date upon which each of such former occupiers was served with a copy of the notice of expiry of the Closure Order. *(Replaced 23 of 1969 s. 6)*
- (11) Notwithstanding the provisions of subsection (8)(a) as to service of a copy of a notice of expiry of a Closure Order upon the owner, where— *(Amended 55 of 1996 s. 5)*
 - (a) the owner cannot be found or ascertained, or is absent from Hong Kong, or is under a disability; or *(Amended 62 of 2000 s. 3)*
 - (b) the notice of expiry of the Closure Order is served on the completion of works by the Building Authority in

accordance with his powers in that behalf under section 26,

then the Building Authority shall cause copies of the notice of expiry of the Closure Order to be—

- (i) served upon all former occupiers of the building of whose addresses he is aware; and
- (ii) advertised in at least 1 English language newspaper and 1 Chinese language newspaper published in Hong Kong.
(Added 23 of 1969 s. 6)

27A. Dangerous hillsides, etc.

- (1) Where in the opinion of the Building Authority any natural, formed or man-made land, or any earth-retaining structure, has due to any cause been rendered so dangerous or liable to become so dangerous that it will collapse, or be likely to collapse, either totally or partially, and thereby will cause, or will be likely to cause, a risk of injury to any person or damage to any property, the Building Authority may by order in writing served on the owner of the land or structure, or on the person who under the terms of a Government lease is under an obligation to maintain the land or structure, declare the land or structure to be dangerous or liable to become dangerous. *(Amended 68 of 1993 s. 16; 29 of 1998 s. 105)*
- (2) An order under subsection (1) may require the owner or person referred to in subsection (1)—
 - (a) to do such work as may be specified in the order;
 - (b) to appoint an authorized person, a registered structural engineer or a registered geotechnical engineer or any combination of them specified in the order to carry out such investigation in relation to the land or structure as may be so specified; and *(Amended 15 of 2004 s. 23)*

- (c) to submit for approval by the Building Authority proposals for work to be done to make the land or structure safe based on the findings of the investigation, within such time or times as may be specified in the order. *(Replaced 91 of 1990 s. 4)*
- (2A) Where proposals for work are submitted pursuant to an order under subsection (1), the Building Authority may—
 - (a) approve the proposals;
 - (b) require amendments to or substitution of the proposals; or
 - (c) refuse the proposals. *(Added 91 of 1990 s. 4)*
- (2B) On giving approval to proposals for work required to be submitted under subsection (2), the Building Authority may by order in writing served on the owner or person referred to in subsection (1) require the carrying out of such approved work on the land and structure to make the land and structure safe within such time as may be specified in the order. *(Added 91 of 1990 s. 4)*
- (2C) All work and investigations specified in an order under this section shall be carried out to such standard acceptable to the Building Authority and in compliance with regulations. *(Added 91 of 1990 s. 4)*
- (2D) Upon the service of an order under this section, the Building Authority shall—
 - (a) in the case of an order served on the owner referred to in subsection (1), cause the order to be registered by memorial in the Land Registry against the land or structure to which the order relates; and
 - (b) in the case of an order served on the person referred to in subsection (1), cause the order to be registered by memorial in the Land Registry against the property that

is leased under the Government lease referred to in that subsection. (*Added 55 of 1996 s. 6. Amended 29 of 1998 s. 105*)

- (3) Where the owner or person referred to in subsection (1) cannot be found or fails to comply with the requirements of an order served under this section or any part of the order or where there is failure to comply with the requirement of subsection (2C) or where proposals submitted under this section are refused, the Building Authority may, without further notice, carry out or cause to be carried out—
- (a) all or any part of the work or investigation specified in the order;
 - (b) such other investigation as he considers to be necessary or expedient from time to time; and
 - (c) such work as he considers to be necessary or expedient to make the land and structure safe, based on the findings of the investigation on the land and structure, whether such investigation is done by the owner or person or by the Building Authority,

and, subject to subsection (3A), the cost of such work or investigation shall be recoverable from that owner or person. (*Amended 91 of 1990 s. 4; 55 of 1996 s. 6*)

- (3A) If the order has been registered with the Land Registry in accordance with subsection (2D), the cost of any work or investigation that the Building Authority carried out or caused to be carried out under subsection (3) shall be recoverable from any person who, as at the date of completion of the work or investigation (as the case may be), is—
- (a) where subsection (2D)(a) applies, the owner of the land or structure to which the order relates; or
 - (b) where subsection (2D)(b) applies, the person who under the terms of the relevant Government lease is under an

obligation to maintain the land or structure to which the order relates. *(Added 55 of 1996 s. 6. Amended 29 of 1998 s. 105)*

- (3B) A certificate purporting to be under the hand of the Building Authority and stating the date of completion of any work or investigation carried out under subsection (3) shall be prima facie evidence of that fact. *(Added 55 of 1996 s. 6)*
- (4) In cases of emergency the Building Authority may carry out or cause to be carried out such work as may appear to him to be necessary either without notice to the owner or person referred to in subsection (1), or before or after such notice, and so far as it is in the opinion of the Building Authority attributable to such emergency the cost thereof shall be recoverable from the owner or person. The decision of the Building Authority that the particular case is one of emergency shall be final and binding on all persons. *(Amended L.N. 159 of 1990)*

(Added 72 of 1980 s. 10)

27B. Danger to buildings caused by abstraction of groundwater from wells

- (1) Where in the opinion of the Building Authority—
- (a) a building is dangerous or is liable to become dangerous; and
 - (b) the cause of its being dangerous or liable to become dangerous is, wholly or partly, the abstraction, whether continuing or past, of groundwater from a well situated in area number 2 of the scheduled areas,
- the Building Authority may, by order in writing, declare that the building is dangerous or liable to become dangerous.
- (2) An order under subsection (1) shall be served on the owner of the well.

- (3) An order under subsection (1) may—
- (a) require the owner of the well to ensure that such abstraction cease permanently;
 - (b) state that the Building Authority proposes to carry out such works as specified in the order to close the well and such other works as he considers necessary for the purpose; and
 - (c) specify as regards any requirement made under paragraph (a) or matter specified in paragraph (b), the period within which such requirement must be complied with or work is to be commenced, carried out or completed.
- (4) Notwithstanding anything in this section, where the Building Authority considers that there is an emergency due to the abstraction of groundwater from a well referred to in subsection (1)(b) he may, for the purpose of closing that well, carry out or cause to be carried out such work as appears to him to be necessary having regard to the emergency and may do so without an order under subsection (1) or any other notice to the owner.
- (5) The decision of the Building Authority that an emergency exists shall not be subject to an appeal under section 44.
- (6) Nothing in this section shall be construed as limiting any power of the Building Authority under section 26 as regards a building affected by abstraction of groundwater.

(Added 77 of 1994 s. 10)

27C. Water pipes, drains or sewers laid in slopes, etc.

- (1) If—
- (a) a water pipe, drain or sewer of any building is laid in, on or under the ground in or in the vicinity of any

natural, formed or man-made land, or any earth-retaining structure; and

- (b) subject to subsection (12), in the opinion of the Building Authority any leakage, defect or inadequacy of the water pipe, drain or sewer may result in a landslip of the land or a collapse of the structure, either totally or partially, and such landslip or collapse may cause, or may be likely to cause, a risk of injury to any person or damage to any property,

the Building Authority may make and serve on the owner of the building such order as referred to in subsection (2).

- (2) The order shall be in writing and may require the owner of the building—
 - (a) to appoint an authorized person to carry out such investigation in relation to the water pipe, drain or sewer as may be specified in the order;
 - (b) to cause such investigation to be commenced and completed within such times as may be specified in the order;
 - (c) to cause a written report on the findings of such investigation to be prepared by the person appointed to carry out the investigation, and to submit such written report to the Building Authority within such time as may be specified in the order; and
 - (d) to submit for approval by the Building Authority proposals for work to be done to remedy any leakage, defect or inadequacy of the water pipe, drain or sewer, based on the findings of such investigation, within such time as may be specified in the order.
- (3) Where proposals for work are submitted pursuant to an order under subsection (1), the Building Authority may—

- (a) approve the proposals;
 - (b) require amendments to or substitution of the proposals;
or
 - (c) refuse the proposals.
- (4) On giving approval to proposals for work required to be submitted under subsection (2), the Building Authority may by order in writing served on the owner referred to in subsection (1) require the carrying out of such approved work within such time as may be specified in the order.
- (5) All investigation and work specified in an order under this section shall be carried out to such standard acceptable to the Building Authority and in compliance with regulations.
- (6) The Building Authority may, upon the service of an order under subsection (1), cause the order to be registered by memorial in the Land Registry against the building to which the order relates.
- (7) Where the owner referred to in subsection (1) cannot be found or fails to comply with the requirements of an order served under this section or any part of the order or where there is a failure to comply with the requirement of subsection (5) or where proposals submitted under this section are refused, the Building Authority may, without further notice, carry out or cause to be carried out—
 - (a) all or any part of the investigation or work specified in the order;
 - (b) such other investigation as he considers to be necessary or expedient; and
 - (c) such work as he considers to be necessary or expedient to remedy the leakage, defect or inadequacy, having regard to the findings of the investigation in relation to the water pipe, drain or sewer, whether such

investigation is carried out by the owner referred to in subsection (1) or by the Building Authority,

and, subject to subsection (8), the Building Authority may recover the costs of such investigation and work from that owner.

- (8) If the order has been registered with the Land Registry in accordance with subsection (6), the cost of the investigation or work that the Building Authority carried out or caused to be carried out under subsection (7) shall be recoverable from any person who, as at the date of completion of the investigation or work (as the case may be), is the owner of the building to which the order relates.
- (9) A certificate purporting to be under the hand of the Building Authority and stating the date of completion of the investigation or work carried out under subsection (7) shall be prima facie evidence of that fact.
- (10) In cases of emergency, the Building Authority may carry out or cause to be carried out such investigation and work in respect of any leakage, defect or inadequacy of the water pipe, drain or sewer referred to in subsection (1) as may appear to him to be necessary by reason of the emergency either with or without notice to the owner referred to in that subsection, and the cost of such investigation and work shall be recoverable from that owner.
- (11) The decision of the Building Authority that an emergency exists shall not be subject to an appeal under section 44.
- (12) (a) If the Building Authority is of the opinion that no leakage, defect or inadequacy of the water pipe, drain or sewer referred to in subsection (1)(b) is likely, no order shall be served under subsection (1).
(b) In forming his opinion under paragraph (a), the Building Authority may have regard to all matters which he

considers relevant and on which information is available to him, and such matters include but are not limited to—

- (i) the age of the water pipe, drain or sewer; and
- (ii) records of investigation and maintenance works in respect of the water pipe, drain or sewer.

(Added 55 of 1996 s. 7)

28. Drainage

- (1) All drainage works for any building shall, save as provided by regulations, be carried out by the owner of such building to the satisfaction of the Building Authority and in compliance with regulations. *(Amended 44 of 1959 s. 12)*
- (2) Where in the opinion of the Building Authority any group of buildings may be drained more advantageously in combination than separately he may—
 - (a) by an order in writing served on the owners of such buildings require to be carried out the necessary drainage works under a combined plan approved by him; or
 - (b) carry out or cause to be carried out such works, and recover the cost thereof from such owners.
- (3) Where in the opinion of the Building Authority the drains or sewers of any building are inadequate or in a defective or insanitary condition he may by an order in writing served on the owner of such building require—
 - (a) such drainage works as may be specified in the order to be carried out;
 - (b) an authorized person to be appointed to carry out such investigation in relation to the drains or sewers of such building as may be so specified; and

- (c) the submission for approval by the Building Authority of proposals for drainage works to be carried out to remedy the inadequacy or the defective or insanitary condition, being proposals based on the findings of the investigation,
within such time or times as may be specified in the order. *(Amended 42 of 1992 s. 3; 77 of 1992 s. 3)*
- (4) Where proposals for drainage works are submitted pursuant to an order under subsection (3), the Building Authority may—
 - (a) approve the proposals;
 - (b) require amendments to or substitution of the proposals; or
 - (c) refuse to approve the proposals. *(Replaced 77 of 1992 s. 3)*
- (5) On approving any proposal for drainage works required to be submitted under subsection (3), the Building Authority may by an order in writing served on the owner referred to in that subsection require the carrying out of such approved works within such time as may be specified in the order. *(Added 77 of 1992 s. 3)*
- (6) All investigations specified in an order under this section shall be carried out to such standard acceptable to the Building Authority and in compliance with the regulations. *(Added 77 of 1992 s. 3)*
- (6A) The Building Authority may, upon the service of an order under this section, cause the order to be registered by memorial in the Land Registry against the building to which the order relates. *(Added 55 of 1996 s. 8)*
- (7) Where the owner referred to in subsection (3) cannot be found or fails to comply with any requirements of an order served under this section or where there is a failure to comply

with any requirement in subsection (1) or (6) or where approval is refused for proposals submitted under this section, the Building Authority may, without further notice, carry out or cause to be carried out—

- (a) all or any part of the drainage works or investigation specified in the order;
- (b) such other investigation as he considers to be necessary or expedient; and
- (c) such drainage works as he considers to be necessary or expedient to remedy the inadequacy or the defective or insanitary condition, having had regard to the findings of the investigation in relation to the drains or sewers of the building, whether such investigation is done by the owner referred to in subsection (3) or by the Building Authority,

and, subject to subsection (7A), the cost of such drainage works or investigation shall be recoverable from that owner.
(Added 77 of 1992 s. 3. Amended 55 of 1996 s. 8)

- (7A) If the order has been registered with the Land Registry in accordance with subsection (6A), the cost of any drainage works or investigation that the Building Authority carried out or caused to be carried out under subsection (7) shall be recoverable from any person who, as at the date of completion of the drainage works or investigation (as the case may be), is the owner of the building to which the order relates. *(Added 55 of 1996 s. 8)*
- (7B) A certificate purporting to be under the hand of the Building Authority and stating the date of completion of any drainage works or investigation carried out under subsection (7) shall be prima facie evidence of that fact. *(Added 55 of 1996 s. 8)*
- (8) In cases of emergency the Building Authority may carry out or cause to be carried out such drainage works as may appear

to him to be necessary by reason of the emergency either with or without notice to the owner referred to in subsection (3) and the costs thereof shall be recoverable from that owner.
(Added 77 of 1992 s. 3)

- (9) The decision of the Building Authority that a particular case is one of emergency shall be final and binding on all persons.
(Added 77 of 1992 s. 3)

(Amended 44 of 1959 s. 12)

28A. Groundwater drainage works in scheduled area

- (1) For the purposes of this section and sections 28B, 28C and 28D ***the relevant works*** (有關工程) means the groundwater drainage works considered necessary by the Building Authority under subsection (2), ***maintain*** and ***maintenance*** (保養) include respectively repair and repairs, and ***successor*** (繼承人), in relation to any person, means a person who derives title under a disposition for valuable consideration and any other successor in title.
- (2) Where, in connexion with any building works in area number 1 of the scheduled areas, the Building Authority considers that groundwater drainage works, whether or not extending beyond the boundaries of the site upon which the building works are to be carried out, are necessary, he may require plans prescribed by regulations to show the relevant works notwithstanding that the relevant works extend beyond those boundaries. (Amended 52 of 1990 s. 6)
- (3) Any approval by the Building Authority of plans showing the relevant works shall include a requirement to maintain the relevant works to the satisfaction of the Building Authority for any period specified in the requirement; and section 28B shall apply in relation to the maintenance of the relevant works as it applies in relation to the carrying out of the works.

(Added 41 of 1982 s. 8)

28B. Authorization to carry out relevant works in case of objection etc. by persons whose property is affected

- (1) Where the relevant works or any part thereof cannot be carried out by reason of the objection or want of agreement of any person whose property would be entered upon, cut through or interfered with by or for the purpose of the works, the person in connexion with whose building works any plans for the relevant works have been approved or, as the case may be, any of his successors may apply in the specified form to the Building Authority for an order under this section authorizing him to carry out the relevant works.
- (2) Notice in writing of the application, of the place where it can be inspected and of the time, which shall be the period of 30 days commencing with the date of service of the notice, within which objections to the relevant works may be made to the Building Authority shall be served by him on every person, not a party to the application, whose property is proposed to be entered upon, cut through or interfered with:
Provided that, in the case of any such person who is not known, it shall be sufficient notice to cause a copy of the notice to be published under subsection (3).
- (3) Without prejudice to section 35, the Building Authority shall cause a copy of the notice required by subsection (2) to be published once in the Gazette and once in 2 English language and 2 Chinese language daily newspapers.
- (4) The Building Authority shall consider every objection to the relevant works made to him within the time specified in the notice and not withdrawn and, by order in writing, may, subject to such conditions as he considers necessary, authorize with or without alteration the carrying out of the relevant works.

- (5) Notice in writing of any authorization under subsection (4) or of any refusal so to authorize shall be served by the Building Authority on every person required to be served with a notice under subsection (2).
- (6) The person authorized under subsection (4) shall have authority to carry out the relevant works and for that purpose to enter upon any land specified in the authorization.
- (7) An authorization granted under subsection (4) to any person shall be deemed also to authorize any servant or agent of that person, and the agent's servants.

(Added 41 of 1982 s. 8. Amended 68 of 1993 s. 17)

28C. Magistrate's warrant

- (1) If a magistrate is satisfied by evidence on oath that the entry upon any land or the carrying out or maintenance of any groundwater drainage works by any person authorized under section 28B(4) has been obstructed, he may upon application by or on behalf of the person so authorized issue a warrant in the form in Schedule 6 authorizing— *(Amended 16 of 2011 s. 19)*
 - (a) every person so authorized before the issue of the warrant to enter upon the land on such occasions and at such times as may be necessary for the purpose for which the authorization under section 28B(4) was granted and to carry out or maintain any such authorized works; and
 - (b) any police officer of or above the rank of inspector and any other police officer acting under his direction to enter upon the land in company with, and for the purpose of preventing the obstruction of, any person authorized under paragraph (a), and in the execution of

the warrant any such police officer may use such force as may be necessary.

- (2) A copy, in the English language and in the Chinese language, of any warrant issued under subsection (1) shall be posted in a conspicuous position on the land to which it relates.

(Added 41 of 1982 s. 8)

28D. Obligation to make good, and compensation for, damage

- (1) Any damage to any land entered upon under section 28B(6) or 28C(1) or to any property thereon, whether above or below ground level, caused by or resulting from the carrying out or maintenance of the relevant works shall be made good as soon as practicable by the person authorized under section 28B(4).
- (2) Any person who, by reason of the carrying out or maintenance of the relevant works, suffers any loss or damage to any land or property entered upon, cut through or interfered with shall be entitled to recover compensation from the person in connexion with those building works the relevant works are carried out or maintained or, as the case may be, from any of his successors.
- (3) Where any dispute arises as to—
 - (a) whether compensation is payable under this section;
 - (b) the amount of any such compensation; or
 - (c) the person by or to whom it is payable,any person who, by reason of the carrying out or maintenance of the relevant works, has suffered any loss or damage to any land or property entered upon, cut through or interfered with may apply to the Lands Tribunal to hear and determine the dispute, except where he and the person in connexion with whose building works the relevant works are carried out

or maintained or, as the case may be, any of that person's successors have entered into an agreement in writing for the payment of an ascertained amount of compensation.

- (4) An application under subsection (3) may be made within 3 years of the date on which the loss or damage was suffered or within such extended time as the Lands Tribunal may in its discretion allow.
- (5) The Lands Tribunal shall have jurisdiction to hear and determine any application under subsection (3); and in the application of the Lands Tribunal Ordinance (Cap. 17) to any such determination, section 11(1) of that Ordinance shall have effect as if for paragraphs (a) and (b) thereof there were substituted the words "any application under section 28D(3) of the Buildings Ordinance (Cap. 123)".

(Added 41 of 1982 s. 8)

29. Construction and maintenance of private streets and access roads

- (1) Every private street and access road shall be surfaced, channelled, sewered and drained to the satisfaction of the Building Authority and in compliance with regulations and lighted to the satisfaction of the Building Authority, and shall be maintained in good order to his satisfaction, by the frontagers.
- (2) Where any private street or access road is not so surfaced, channelled, sewered, drained, lighted or maintained in good order, the Building Authority—
 - (a) may by order in writing served on the frontagers require them to carry out, within such time as may be specified therein, such work as he considers necessary; or
 - (b) where, in the case of a private street, the public interest would, in his opinion, be better served if such work

- were carried out by him or under his direction, may, subject to the provisions of subsection (3), carry out such work himself, notwithstanding that the frontagers may be willing to carry out such work.
- (3) (a) Where, pursuant to the provisions of subsection (2)(b) the Building Authority intends to carry out any work, he shall give notice of his intention to the frontagers.
- (b) Any such frontager who wishes to object to the carrying out of such work by the Building Authority shall give notice of his objection, specifying the grounds thereof, within a period of 14 days from the giving of the notice required by paragraph (a).
- (c) The Building Authority shall not commence or authorize the commencement of such work until the expiration of the said period of 14 days or, where he has received any objection within such period, until he has considered and made reply thereto, whichever is the later.
- (4) If any order made under subsection (2)(a) is not complied with, the Building Authority may carry out or cause to be carried out the work required thereby to be carried out.
- (5) Where in the opinion of the Building Authority a private street or access road has been rendered dangerous or liable to become dangerous and emergency has thereby arisen, he may carry out or cause to be carried out such work as may appear to him to be necessary, either without notice to the frontagers or before or after such notice. The decision of the Building Authority that the particular case is one of emergency shall be final and binding on all persons. (*Added 40 of 1965 s. 6*)
- (6) The Building Authority may recover the cost of any work carried out pursuant to the provisions of subsection (2)(b) or of subsection (4), or the cost of any work carried out pursuant to the provisions of subsection (5) so far as it is in his opinion

attributable to the emergency, from the frontagers; and the Building Authority shall apportion such cost— (*Amended 40 of 1965 s. 6*)

- (a) in the case of private streets, according to the frontages of the premises owned by such frontagers; or
 - (b) in the case of an access road, in proportion to the areas of the lots to which the road provides access. (*Replaced 37 of 1961 s. 4*)
- (7) (a) Upon the application of the frontager on a private street or, where there are more than one of the greater part in value of such frontagers, the Building Authority may, where he considers that the use of the street by the public is such as to justify its maintenance at the expense of the Government, undertake the further maintenance of the street.
- (b) The Building Authority shall not undertake the further maintenance of any private street until—
- (i) the owner or owners of the land on which the street is constructed have surrendered such land to the Government free from all competing rights, titles, interests, trusts, claims, liens, demands and restrictions of all kinds whatsoever; and
 - (ii) any order which he may have made under subsection (2)(a) has been complied with.
- (8) The Building Authority may exempt from the application of this section, either wholly or in part, any private street on which no buildings front or abut.
- (9) The cost of the supply of gas or electricity for the lighting of any private street and the cost of maintaining all apparatus required for such purpose shall be borne by the Government. (*Amended 37 of 1961 s. 4*)

- (10) Where the Building Authority certifies that the lighting of an access road is in the public interest on the grounds of public safety, good order and security, the cost of the supply of gas or electricity for the lighting of the access road and the cost of maintaining all apparatus required for such purposes shall be borne by the Government. *(Added 37 of 1961 s. 4)*

(Replaced 44 of 1959 s. 13)

29A. Maintenance of emergency vehicular access

- (1) An emergency vehicular access shall be maintained in good order by the owner of the emergency vehicular access.
- (2) Where, on inspection, the Building Authority finds—
- (a) any dilapidation or defect in an emergency vehicular access; or
 - (b) any alteration or addition made to an emergency vehicular access,
- has resulted, or is likely to result, in the emergency vehicular access being no longer capable of serving the purpose for which it is designed and constructed, the Building Authority may by order in writing served on the owner of the emergency vehicular access require him to carry out, within such time as may be specified in the order, such work as the Building Authority considers necessary.
- (3) Where an order served under subsection (2) is not complied with, the Building Authority may carry out or cause to be carried out the work required by the order to be carried out, and subject to subsection (6), the cost of such work shall be recoverable from the owner of the emergency vehicular access.
- (4) Where in the opinion of the Building Authority, an emergency vehicular access has been rendered dangerous or liable to become dangerous and emergency has thereby arisen, he may

carry out or cause to be carried out such work as may appear to him to be necessary, either without service of a notice on the owner of the emergency vehicular access, or before or after such notice, and so far as it is in his opinion attributable to such emergency, the cost of such work shall be recoverable from the owner of the emergency vehicular access. The decision of the Building Authority that the particular case is one of emergency shall be final and binding on all persons.

- (5) The Building Authority may, upon the service of an order under subsection (2), cause the order to be registered in the Land Registry against the emergency vehicular access to which the order relates.
- (6) Where the order has been registered with the Land Registry in accordance with subsection (5), the cost of any work carried out pursuant to subsection (3) shall be recoverable from any person who, as at the date of completion of the work, is the owner of the emergency vehicular access to which the order relates.
- (7) A certificate purporting to be under the hand of the Building Authority and stating the date of completion of any work carried out under subsection (3) shall be prima facie evidence of that fact.

(Added 15 of 2004 s. 24)

30. Openings to or from streets

- (1) Save where the Building Authority has given his consent—
 - (a) under this section, or
 - (b) for the commencement of building works or street works which include such works,no person shall carry out works for the construction, formation, laying out, or alteration of any means of access or opening to or from any street.

- (2) The Building Authority may refuse to give his consent for such works where in his opinion the intended access or opening to or from any street is such as to—
- (a) be dangerous or likely to be dangerous; or
 - (b) be prejudicial to the safety or convenience of traffic or pedestrians using or expected to use such street.
- (3) In giving his consent the Building Authority may by order in writing impose such conditions as he considers necessary for securing the safety and convenience of traffic and pedestrians using or expected to use the street.
- (4) Works for the construction, formation, laying out or alteration of any means of access or opening to or from any street shall be deemed to be street works for the purposes of sections 22, 23, 24, 33, 35, 37, and Parts 4, 5 and 6.

(Added 44 of 1959 s. 13. Amended E.R. 1 of 2012)
